

Costs: “Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (Code Civ. Proc. § 1032(b).) Absent statutory authority, the Court has no discretion to deny costs to the prevailing party. (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 129.) Here, costs appear supported.

Thus, the total hours approved would be 56.6 hours or \$18,919, plus \$1,050 for the work on this motion. The fees would be approved at \$19,969. Costs would be approved at the requested \$2,653.32.

17. *Tetra Tech, Inc., et al, v. Laka*, Case No. CIVSB2516211
Defendant’s Motion to Compel “Discovery Responses”
9/23/26, 9:00 a.m., Dept. S-17

The Court would **CONTINUE** this matter to allow the payment of proper motion filing fees.

Movant is admonished to separate out motions by discovery device. Here, movant’s single motion for “discovery responses” is actually *two* motions: (1) a motion to compel responses to Requests for Production, Set One (RFP1) *and* (2) a motion to compel responses to Special Interrogatories, Set One (SROG1).

Such a combination creates problems allocating filing fees and calendaring the motions. (Gov. Code, § 70617(a)(4) & (f) [moving party must pay the filing fee for each discovery motion “[r]egardless of whether each motion or matter is heard at a single hearing or at separate hearings.”].) “If more than one motion is combined with another, a separate filing fee shall apply to each motion.” (Local Rule 521.) Here, only one filing fee has been paid.

Accordingly, movant will pay the additional filing fee, and the matters will be continued to a time after all required fees have been paid.
